

ExxonMobil (Huizhou) Chemical Co., Ltd.
埃克森美孚（惠州）化工有限公司
办公地址：惠州大亚湾澳头天后南路1号



合同

销售合同	合同号: 日期 (YYYYMMDD): 成交方式:	13196085 20250220 FOB	票据编号: 14823789
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该合同是埃克森美孚（惠州）化工有限公司，一家成立于惠州，注册地址为惠州大亚湾澳头天后南路1号的公司（卖方）与EXXONMOBIL CHEMICAL ASIA PACIFIC (A DIVISION OF EXXONMOBIL ASIA PACIFIC PTE. LTD.) 一家成立于新加坡，注册地址为1 HarbourFront Place, #06-00, HarbourFront Tower One, Singapore的公司（买方）之间签署的。

根据合同条款，卖方同意卖给买方且买方同意从卖方购买在此列出的条款和条件下的以下产品。
客户应始终遵守所有适用的海关、贸易和贸易安全的法律、规则和条例（包括但不限于进出口国家或地区的所有此类法律）。

序号（合同）	物料号	英文名称	中文名称	原产国	数量	单位	单价（吨）	币制	金额
10	5248347	PP2232E1 HCC BG 25KGX60	均聚聚丙烯	中国(CHN)	51	吨	920	美元	46,920.00
				合计:	51.00				46,920.00

ExxonMobil (Huizhou) Chemical Co., Ltd.
埃克森美孚（惠州）化工有限公司
(卖方)



盖章:

EXXONMOBIL CHEMICAL ASIA PACIFIC (A DIVISION OF
EXXONMOBIL ASIA PACIFIC PTE. LTD.)

(买方)



签名:



卖方的订单确认书内的条款(如有)及本标准销售条款和条件(“本协议”)。卖方的订单确认书一旦构成对双方唯一具约束力的合同条款和条件(“本协议”)。

风险和意外损失。卖方在订立合同时，应明确说明其承担的风险，如火灾、盗窃、意外损失等。如果货物在运输过程中发生损失，卖方应承担赔偿责任。此外，卖方还应明确说明其承担的风险，如火灾、盗窃、意外损失等。如果货物在运输过程中发生损失，卖方应承担赔偿责任。

受限制。卖方对一批货物无论因何原因(不论是基于合同、侵权行为或其他违约的原因)引起的所有索赔所承担的最大责任,不应超过该批货物的发票价格,或被卖方之选择(因同一原因导致对类似产品或不含规格产品)更换产品;但是,在任何情况下,买方均有义务尽可能减少损失。卖方在任何情况下均不承担任何特别、附带、惩罚性或间接损害赔偿责任。除非本条款在买卖合同中被修改,否则无论在任何情况下,卖方均不承担任何特别、附带、惩罚性或间接损害赔偿。为补救的目的,应被修改为完全放弃。为补救的目的,应被修改为完全放弃。为补救的目的,应被修改为完全放弃。

[illegible]

在任上。仲裁庭由三名仲裁员组成，其中两名由双方各自推选，第三名由双方共同推选。首席仲裁员由双方协议选定，或在双方无法达成协议时，由仲裁员委员会指定。仲裁员中任何一方提出仲裁员的通知之日起二十天内未能达成协议，则以争议、争端或类似物提交仲裁委员会。按照申请仲裁时该会现行有效的仲裁规则进行仲裁。仲裁裁决是终局的，对双方均有约束力。仲裁庭适用法律和司法管轄。本协议受中华人民共和国法律管辖，但不包括其冲突法规则。各方同意排除适用《联合国国际货物销售合同公约》。因本合同引起或与本合同有关的任何争议、争端或类似物，包括与本合同的成立、效力或终止有关的任何问题，买方和卖方应通过友好协商解决。

权利的放弃 任何一方欲证明对本义条款和条件的违反作出的权利放弃，并不可以被解释为对任何之后遭受相同条款和条件的其他条款和条件放弃权利。

给予任何有价物品(无论该官员是任命、选举的、名誉的或是现任的),亦不会在知道或怀疑一个第三方政府给予金钱或分享金钱的情况下,向该第三方作不恰当的付款。

(a) 此種樣本是由我司總統一全球諸國內消費使用。此批舊式袋裝麵之前是從國外帶貨物出口到中國，計劃貨物用用箱裝回國外後再做為包裝容器再出口。因此雙方在遵守中國某項規定的條件下對此批舊式袋裝麵的暫時進出口報關。



EMHCC STANDARD TERMS AND CONDITIONS OF SALE AND ACCEPTANCE OF ORDER

ACCEPTANCE

The acceptance of Buyer's order by Seller is expressly made conditional upon Buyer's assent to these Standard Terms and Conditions of Sale, Terms as specified in Seller's Order Confirmation (if any) and these Standard Terms and Conditions shall constitute the only binding contract terms and conditions between the parties (the "Agreement") in the absence of a written agreement as described in the Clause on Written Agreement.

WRITTEN AGREEMENT

If there is an executed written sales agreement in effect between Buyer and Seller covering Buyer's order, the terms and conditions of that agreement shall prevail over any conflicting term in Seller's Order Confirmation and/or these Standard Terms and Conditions and/or Buyer's purchase order.

PRICE ADJUSTMENT

Seller may change any price, freight and/or payment terms of this Agreement at any time by giving Buyer at least thirty (30) days' prior written notice. Buyer's failure to deliver to Seller written objection to any such change at least ten (10) days before its effective date shall constitute acceptance. If Buyer does deliver such objections within the deadline, no delivery shall be made until parties agree on the new price, freight and/or payment terms. If Seller should be prevented from making a change in price, freight and/or payment terms or continuing a price, freight and/or payment terms already in effect by law, governmental decree, order or regulation, Seller may terminate this Agreement by giving Buyer thirty (30) days' prior written notice.

QUANTITY

Product quality and quantity shall be determined by Seller or its nominee. For bulk liquid product shipments, product quantity shall have a shipping allowance of +/-5% of the quantity indicated in Seller's Order Confirmation or separate sales contract, or such other percentage as determined by Seller.

For bulk solid shipments, the loading tolerance shall be +/- 5% of the net weight of quantity indicated in Seller's Order Confirmation or separate sales contract.

For solid and liquid product shipments, to allow for standard tolerances of scales, no claim shall be made for shortages of less than 0.5% of the gross weight of any shipment of packaged solid product or less than 0.5% of the net weight of any shipment of bulk liquid product. Seller shall have the right at all times to appoint an independent surveyor.

TAXES

Unless stated otherwise in Seller's Order Confirmation or separate Sales Contract, all prices are exclusive of taxes (except value added tax "VAT"), duties, or other governmental charges, if applicable, levied on or in respect of the product or delivery thereof. Buyer shall pay or reimburse Seller for such taxes, duties or charges, if applicable.

RISK AND TITLE TRANSFER

Risk of loss of and damage to product shall pass to Buyer in accordance with the Incoterm specified in Seller's Order Confirmation or separate sales contract. Buyer assumes all risk and liability for loss, damage, or injury to the person or property of Buyer or other parties arising out of the use or possession of any product sold hereunder. Unless stated otherwise in Seller's Order Confirmation or separate sales contract, title in product shall pass to Buyer simultaneously with risk of loss of and damage to product. However, if the product is shipped by Seller from the US, such title and risk shall pass to Buyer at the first point at which the delivering vessel crosses the outer boundary of the US Exclusive Economic Zone (EEZ). The EEZ extends 200 nautical miles beyond the coastal baseline defined in the United Nations Convention on the Law of the Sea or as such term is used in the said Convention.

WARRANTIES

There are no warranties which extend beyond the description on the face hereof, and Seller makes no warranty, expressed or implied, of satisfactory quality, merchantability, fitness for any particular use or otherwise, except that the products sold hereunder shall meet Seller's applicable standard specifications or such other specifications as may be notified by Seller to Buyer from time to time. Buyer assumes all risk whatsoever as a result of the use of the products purchased, whether used singly or in combination with other substances or in any process. Without limiting the foregoing, Seller does not recommend nor endorse the use of product in any medical application and specifically disclaims any representation or warranty, express or implied, of suitability or fitness for use, or otherwise with respect to product's use in any medical application. Buyer represents and warrants that no product purchased hereunder will be used or resold for use in any commercial or developmental manner in connection with medical applications without Seller's prior express written acknowledgement. Further, Buyer agrees that it will make no representations, express or implied, to any person to the effect that Seller recommends or endorses the use of product purchased hereunder in any medical application.

LIMITATION OF CLAIMS

Seller's maximum liability for all claims for a shipment due to any cause whatsoever, whether based in contract, tort or otherwise, shall be no greater than the invoiced price of that shipment, or at Seller's option, and only in the case of claims regarding defective or non-conforming product, to replacement of such products, provided that in all cases Buyer shall be under an obligation to mitigate any loss as far as possible. Seller shall not in any event be liable for any special, incidental, exemplary or consequential damages.

All claims for any cause whatsoever, whether based in contract, tort or otherwise, shall be deemed waived unconditionally and absolutely unless Seller receives complete written details of such claim and all supporting documents required by Seller not later than thirty (30) days after Buyer's receipt of product as to which such claim is made. Receipt will be deemed to have taken place for purposes of this subparagraph when product title and risk pass to Buyer.

LAYTIME AND DEMURRAGE

Buyer shall unload tank containers, cars, trucks and barges furnished by Seller and clear products from port, or at delivery destination, within the free time specified by tariffs or time periods on file with applicable bodies, or promptly after receipt if no such tariffs or time periods are on file. Buyer shall pay charges resulting from its failure to do so to Seller or directly to the common carrier upon receipt of invoice. For bulk marine shipment, demurrage charge at load port is for account of Seller and at discharge port for Buyer's account. For sales other than FOB sales, laytime allowed, demurrage rate and applicable charter party terms shall be as specified in Seller's vessel nomination to Buyer failing which, the terms in Seller's contract of affreightment with the vessel owner shall apply and Buyer shall pay Seller or the carrier the demurrage incurred at the discharge port by Seller's stipulated deadline. Subject to the foregoing, for the first discharge terminal, laytime shall commence six (6) hours after the vessel's notice of readiness is tendered to Buyer (or its agent) upon the vessel being all fast to the discharge terminal, whichever occurs first, and for subsequent discharge terminal(s), laytime shall commence immediately when the vessel's notice of readiness is tendered to Buyer (or its agent). Laytime shall cease upon disconnection of all cargo hoses upon completion of discharge. Any savings arising from less than the maximum allowed laytime being used at the load port may, at the Seller's sole discretion, be passed on to the Buyer. For FOB sales, vessels nominated by Buyer are subject to Seller's screening, inspection and acceptance process and Seller's agreement to loading-date range duration / loading-date range narrowing profile / loading-date range communication deadline and other shipping logistics, and any claim for demurrage by Buyer shall be waived unless notice in writing of such claim is received by Seller with full supporting documentation (including the invoice and time sheet issued by the vessel) by Seller's stipulated deadline.

FAILURE IN PERFORMANCE

Failure by Seller to deliver on a specific date shall not entitle Buyer to repudiate this Agreement. Buyer shall not be relieved of any obligations to accept or pay for products by reason of any delay in delivery or dispatch. Furthermore, no liability shall result to either party for delay in performance or non-performance of an obligation hereunder (except an obligation to make payment) in whole or in part caused by circumstances reasonably beyond the control of the party affected, including but not limited to acts of God, terrorist activity, transportation failure, breakdowns, equipment failure, criminal enterprise, sabotage, diminishment, or failure of power, telecommunications, data systems or networks, shortage or inability to obtain product or raw material for product, or good-faith compliance with any governmental order or request (whether valid or invalid). Notwithstanding any other notice requirement in this Agreement, actual notice (e.g., phone, email, letter) to a counterparty of a delay or failure described in this provision will constitute effective notice for purposes of this provision. Regardless, however, of the occurrence or nonoccurrence of any such circumstances, if for any reason supplies of or distribution logistics for product or feedstock for making product, from any of Seller's existing sources are curtailed or are inadequate to meet Seller's own requirement and/or its obligation to its customers, Seller's obligation to deliver product during such period shall be reduced to the extent necessary, in Seller's sole judgment, to apportion fairly among Seller's own requirements and its customers (whether under contract or not) such products as received and as may be available in the ordinary and usual course of Seller's business from any existing sources of supply at the location(s) from which deliveries like those covered hereby are normally shipped. Seller shall not be obligated to purchase or obtain product, or feedstock to make product, to replace deliveries omitted or curtailed under this Paragraph.

MODIFICATION AND AMENDMENTS

There are no oral understandings, representations or warranties between the parties that conflict with these Standard Terms and Conditions or the details of price, payment, shipment or delivery schedule as communicated by Seller. No modification of any Standard Terms and Conditions shall be of any force or effect unless such modification is in writing and signed by the party to be bound thereby, and no modification of the same shall be effected by the acknowledgement of Buyer's purchase orders or equivalent forms containing terms and conditions at variance with those set forth herein and all such terms or conditions in Buyer's purchase orders or equivalent forms shall be considered null and void. In the event that Buyer wishes to re-sell the products to a third party(ies), and requests Seller to incorporate a reference to such or other third party(ies) in any shipping or other document, Buyer agrees to indemnify Seller and hold it harmless in respect of any liability, loss or damage of whatsoever nature which it may sustain by reason of acceding to Buyer's request, and, if required by Seller, to provide a written confirmation of the same.

GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the laws of the People's Republic of China without referring to its conflict of laws principles. Parties agree to exclude the application of the United Nations Convention on Contracts for the International Sale of Goods. Any dispute, controversy or claim arising out of or in connection with this Agreement, including any question regarding its existence, validity or termination, shall be settled through friendly consultations between Seller and Buyer. In the event that no settlement is reached within 30 days from the date of notification by either party to the other that it intends to submit a dispute, controversy or claim to arbitration then such dispute, controversy or claim shall be submitted to the Shanghai International Economic and Trade Arbitration Commission ("SIETAC") for arbitration which shall be conducted in accordance with the SIETAC's rules in effect at the time of applying for arbitration. The arbitral award is final and binding upon the parties. The place of the arbitration shall be Shanghai. The tribunal shall consist of three arbitrators. Two arbitrators shall be selected by the respective parties. The presiding arbitrator shall be selected by agreement between the parties or, failing agreement within 20 days of the appointment of the two party-nominated arbitrators, by the chairman of SIETAC.

LANGUAGE

These standard terms and conditions are written in both English and Chinese. In case of discrepancy, the English version shall prevail.

ASSIGNMENT

This Agreement shall not be assigned, in whole or in part, by either party without the prior consent of the other party, but shall be binding upon and shall inure to the benefit of the legal successors of the respective parties hereto; except that Seller may assign this Agreement, in whole or in part, to any affiliate. For purposes of this Clause, an "affiliate" of Seller means the ultimate holding company of Seller or any corporation of which fifty percent (50%) or more of the outstanding stock is held directly or indirectly by such ultimate holding company.

DEFINITION

To the extent not inconsistent with the terms hereof, Incoterms 2010 shall apply hereto.

NO WAIVER

No waiver by either party of any breach of these Standard Terms and Conditions shall be construed as a waiver of any succeeding breach of the same.

CREDIT

At Seller's request, Buyer shall furnish Seller with security on terms stipulated by Seller. If at any time Buyer fails to make payment when due or if Seller determines, in its sole discretion, that the financial status of Buyer is impaired or that the level of security provided does not for any reason reflect fairly or adequately the financial risk or exposure undertaken by Seller, Seller shall have the right, without prejudice to its other rights in contract or at law, upon notice to Buyer, to withhold further deliveries of product, change any terms of payment or credit, suspend performance under this Agreement, accelerate payment obligations such that all amounts owed under prior deliveries and not paid shall become immediately due and payable, require Buyer to furnish security as deemed appropriate by Seller and/or exercise rights against any collateral and apply the proceeds against amounts due and owing. Seller shall in any event have the right to set-off any claim that Seller (or its affiliate) may have against Buyer (or its affiliate), against any sum which Seller may owe to Buyer (or its affiliate). In the event Seller requires a documentary letter of credit, it shall be issued by a seller accepted bank in form and substance acceptable to Seller. A clean letter of credit is to be received by Seller prior to the estimated shipment date or by such date as Seller shall agree. Seller shall have no obligation to deliver product if the letter of credit is not so received by Seller. Without prejudice to Seller's other rights in law and contract, it is agreed that Buyer shall indemnify and hold harmless the Seller from and against any dead-freight, vessel and/or port charges and payments, demurrage and/or any damages, losses or expenses incurred as a result of any delay in loading or non-delivery of any product under this Agreement arising from Buyer's failure or delay in providing the letter of credit in accordance with the terms of this Agreement.

If Seller expressly agrees to accept electronic bank acceptance draft for payment, such electronic bank acceptance draft shall fulfill the criteria request by Seller and agreed by Seller in advance in writing. Electronic bank acceptance draft discounting interest will be settled by the prior written agreement between Seller and Buyer or by any other means mutually agreed by both parties.

Where the payment is made by electronic bank acceptance draft which is agreed by Seller in advance, Seller shall receive the electronic bank acceptance draft from Buyer before the payment due date as specified in payment terms.

BUSINESS PRACTICES

(a) Business Standards. Each party to this Agreement shall establish precautions to prevent its employees or subcontractors from making, receiving, providing or offering any substantial gifts, extravagant entertainment, payments, loans, or other considerations to the employees of the other party and/or their families and/or third parties in connection with this Agreement.
(b) Compliance With Law. Each party agrees and will secure agreement by its subcontractors to comply with all applicable laws, regulations, decrees and judicial orders. Notwithstanding anything in this Agreement to the contrary, no provision shall be interpreted or applied so as to require any party to do, or refrain from doing, anything which would constitute a violation of, or result in a loss of economic benefit under, United States anti-boycott and other export laws and regulations. Each party represents to the other party that it shall not make any improper payments of money or anything of value to a government official (whether appointed, elected, honorary, or a career government employee) in connection with this Agreement, nor shall it make improper payments to a third party knowing or suspecting that the third party will give the payment, or a portion of it, to a government official.

(c) Notice of Non-Compliance. Each party (the "Relevant Party") agrees to notify the other party promptly upon discovery of any instance where the Relevant Party fails to comply with this Clause. If either party discovers or is advised of any errors or exceptions related to its invoicing under this Agreement, both parties will together review the nature of the errors or exceptions, and will, if appropriate, promptly

Temporary Import and Export Agreement

(a) These tanks are uniformly distributed and used by our headquarters in the world. These portable tanks were exported to CHINA. It is planned that the empty containers will be returned to oversea after the goods are used up. These tanks will be re-exported. At this point, buyer claimed these tanks are imported with temporary purpose. It's only for package usage. And buyer will return the tank under China customs rules accordingly.

(b) The portable tank will be carried back. During the whole process, the buyer is only authorized to use it for 6 months and must be exported within 6 months. The buyer can submit extension request to local customs office. Extension request can be submitted up to 3 times and no more than 6 months for each extension. The buyer cannot transfer or sell it. Generally, and other actions apart of using are not allowed.



ExxonMobil (Huizhou) Chemical Co., Ltd.
埃克森美孚 (惠州) 化工有限公司
办公地址: 惠州大亚湾澳头天后南路1号



Bill to:
EXXONMOBIL CHEMICAL ASIA PACIFIC(A DIVISION OF EXXONMOBIL ASIA PACIFIC PTE. LTD.)
Office Address: 1 HarbourFront Place, #06-00, HarbourFront Tower One, Singapore

商业发票

合同号: 13196085	发票号: E14823789	发票日期: 20250220	票证编号: 14823789
贸易国: 新加坡(SGP)	成交方式: FOB		

序号	合同号	序号 (合同)	物料号	英文名称	中文名称	数量	单位	单价	币制	金额	原产国
1	13196085	10	5248347	PP2232E1 HCC BG 25KGX60	均聚聚丙烯	51,000.00	千克	0.92	美元	46,920.00	中国(CHN)

ExxonMobil (Huizhou) Chemical Co., Ltd.
埃克森美孚 (惠州) 化工有限公司

(卖方)

盖章



日期

ExxonMobil (Huizhou) Chemical Co., Ltd.
埃克森美孚（惠州）化工有限公司
办公地址：惠州大亚湾澳头天后南路1号

ExxonMobil

Bill to:
EXXONMOBIL CHEMICAL ASIA PACIFIC(A DIVISION OF EXXONMOBIL ASIA PACIFIC PTE. LTD.)
Office Address: 1 HarbourFront Place, #06-00, HarbourFront Tower One, Singapore

装箱单

合同号: 13196085 发票号码: E14823789	贸易国: 包装方式:	新加坡(SGP) 包/袋	总净重 (KG): 包装数量:	51000.00 2040	总毛重 (KG): 52020 成交方式: FOB	单据编号: 托盘数量:	14823789	34
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合同号	序号 (合同)	物料号码	英文名称	中文名称	数量	单位	原产国	净重(千克)	毛重(千克)
13196085	10	5248347	PP2232E1 HCC BG 25KGX60	均聚聚丙烯	51,000.00	千克	中国(CHN)	51,000.00	52,020.00

Packing Declaration:ISPM-15 Compliant Wooden Pallets
Any wood packing material associated with the above product has been treated by an accredited agent using an approved Phytosanitary Sanitisation method to the International Standard No 15 (ISPM-15) and bears the IPPC(or ISPM-15 compliant) mark.

